

Aged, Blind and Disabled Manual

Section: CHOICES

Policy Manual Number: 130.010

Chapter: **Employment and Community First CHOICES**

Legal Authority: TennCare III Medicaid Section 1115 Demonstration; Tenn. Comp. R. & Regs. 1200-13-20

1. Overview

The Employment and Community First (ECF) CHOICES program was established in 2016 to provide managed long-term services and supports (LTSS) for individuals with intellectual or developmental disabilities (I/DD) in a home and community-based setting. This includes individuals with I/DD who were previously on the waiting list for Department of Disability and Aging (DDA) waivers, individuals with intellectual disabilities who were not receiving home and community-based services (HCBS), and individuals with developmental disabilities previously ineligible for DDA waivers. The managed LTSS individuals receive are integrated with the physical and behavioral health benefits coordinated by their Managed Care Organization (MCO). The purpose of the program is to promote and support integrated, competitive employment and independent community living as the first and preferred option for individuals with I/DD.

2. Target Populations

ECF CHOICES provides HCBS to six target populations:

- a.** Children under age 21 with I/DD living at home with family and who meet nursing facility (NF) level of care (LOC);
- b.** Children under age 21 with I/DD living at home with family and who do not meet NF LOC, but who, in the absence of HCBS, are at risk of NF placement;
- c.** Adults age 21 and older with I/DD who meet NF LOC and need specialized services for I/DD;
- d.** Adults age 21 and older with I/DD who do not meet NF LOC, but who, in the absence of HCBS, are at risk of NF placement;
- e.** Children under age 21 with I/DD and severe co-occurring behavioral health and/or psychiatric conditions who are living at home with family or other permanent guardian(s) in a long-term family living arrangement and who meet NF LOC; and
- f.** Adults age 21 and older with I/DD and severe co-occurring behavioral health and/or psychiatric conditions who are transitioning out of a highly structured and supervised environment, who meet NF LOC, and need specialized services for I/DD.

3. General Eligibility Requirements

In order to qualify for ECF CHOICES, an individual must:

- a. Have been assessed and found to have an intellectual disability manifested before eighteen (18) years of age or a developmental disability manifested before twenty-two (22) years of age, as specified in Tennessee State law (Tennessee Code Annotated, Title 33-1-101); and
- b. Be enrolled in TennCare Medicaid as an SSI cash recipient or through one of the ECF CHOICES demonstration groups.

4. ECF CHOICES Demonstration Groups

The ECF CHOICES demonstration groups are:

- a. ECF CHOICES 217-Like Group;
- b. Interim ECF CHOICES At-Risk Group;
- c. ECF CHOICES At-Risk Group; and
- d. ECF CHOICES Working Disabled Group.

The Interim ECF CHOICES At-Risk Group was closed to new enrollment upon implementation of the ECF CHOICES At-Risk and ECF CHOICES Working Disabled Groups. Individuals already enrolled in the Interim Group may remain enrolled as long as they continue to meet the financial eligibility requirements, the nursing facility level of care (LOC) criteria in place on June 30, 2012, and remain continuously eligible and enrolled in the Interim ECF CHOICES At-Risk Group.

5. Non-Financial Eligibility Requirements for the Demonstration Groups

a. Age

There is no age requirement.

b. Level of Care (LOC)

An individual must be determined by the LTSS Unit to qualify for the following LOC:

- i. ECF CHOICES 217-Like Group: NF LOC
- ii. Interim ECF CHOICES At-Risk Group: At Risk LOC
- iii. ECF CHOICES At-Risk Group: At Risk LOC
- iv. ECF CHOICES Working Disabled Group: NF LOC or At Risk LOC

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c. Target Population

An individual must be in one of the target populations.

d. Citizenship

An individual must be a U.S. citizen, U.S. national, or eligible non-citizen.

e. Enumeration

An individual must possess and provide a valid Social Security Number (SSN) or proof of application for an SSN, unless he meets an exception.

f. State Residence

An individual must be a resident of Tennessee.

g. Slot Status

An individual must meet the eligibility and enrollment criteria for an ECF CHOICES benefit group, qualify in a group for which enrollment is currently open, and there must be an available slot for the individual to be enrolled. In certain instances, an individual can be enrolled outside the enrollment target for an ECF CHOICES benefit group if there is no slot available.

h. Earned Income

To be eligible for the ECF CHOICES Working Disabled Group, an individual must have earned income.

6. ECF CHOICES Benefit Groups

Enrollment in a benefit group depends on an individual's age, I/DD status, and medical and/or functional needs. The ECF CHOICES benefits individuals receive are based on the benefit group into which they are enrolled. The ECF CHOICES benefit groups include:

a. Essential Family Supports (ECF CHOICES Group 4)

ECF CHOICES Group 4 is for children under age 21 and adults age 21 and older with I/DD who live with family caregivers, meet the NF LOC or who, in the absence of HCBS, are at risk for institutionalization.

b. Essential Supports for Employment and Community Living (ECF CHOICES Group 5)

ECF CHOICES Group 5 is for adults age 21 or older with I/DD who, in the absence of HCBS, are at risk for institutionalization. Adults age 21 and older with I/DD who meet NF LOC may be enrolled in ECF CHOICES Group 5 if their needs can be safely and appropriately met in Group 5.

c. Comprehensive Supports for Employment and Community Living (ECF CHOICES Group 6)

ECF CHOICES Group 6 is for adults age 21 or older with I/DD who meet NF LOC and need specialized services for I/DD.

d. Intensive Behavioral Family Supports (ECF CHOICES Group 7)

ECF CHOICES Group 7 is for children under age 21 with I/DD who meet NF LOC, live with family caregivers, have severe behavioral health and/or psychiatric conditions that:

- i. Place the child or others at imminent and significant risk of serious physical harm (that does not rise to the level of inpatient treatment or for which such treatment would not be appropriate);
- ii. Significantly strain the family's ability to adequately respond to the child's needs;
- iii. Threaten the sustainability of the family living arrangement; and
- iv. Place the child at imminent and significant risk of placement outside the home.

e. Comprehensive Behavioral Supports for Employment and Community Living (ECF CHOICES Group 8)

ECF CHOICES Group 8 is for adults age 21 and older with I/DD who have severe behavioral and/or psychiatric conditions, are transitioning out of a highly structured and supervised environment (e.g., criminal justice system, foster care system, long-term institutional placement, psychiatric hospital), meet NF LOC, and need specialized services for I/DD. A person's psychiatric symptoms or behaviors must:

- i. Place the person or others at imminent and significant risk of serious physical harm (that does not rise to the level of inpatient treatment or for which such treatment would not be appropriate); and
- ii. Necessitate continuous monitoring and supervision by 24-hour staff to ensure the person's safety and/or the safety of others.

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Note: Young adults ages 18 to 20 with I/DD not living at home with family, who meet eligibility criteria, on a case-by-case basis, may be permitted to enroll in ECF CHOICES Group 5, 6 or 8. Individuals who do not meet the NF LOC, but who meet the ICF/IID criteria who are transitioning from the Statewide or Comprehensive Aggregate Cap (CAC) waivers or from an Intermediate Care Facility for Individuals with Intellectual Disabilities (ICF/IID) may be granted an exception to enroll in ECF CHOICES Group 6 or 8.

7. Financial Eligibility Requirements for the Demonstration Groups

a. Eligibility Determination Group (EDG)

Financial eligibility is determined based on an EDG size of one. The only EDG member included is the applicant.

b. Parent-to-Child Deeming

The income and resources of a child's parents are deemed available to a child under age 18, unless the child:

- i. Is age 17 or older and meets NF LOC;
- ii. Will be enrolled in ECF CHOICES Group 7;
- iii. Is transitioning from ECF CHOICES Group 7 to ECF CHOICES Group 4; or
- iv. Was enrolled in ECF CHOICES before November 23, 2020 (i.e., the date the Katie Beckett program was implemented).

Note: Children who were enrolled in ECF CHOICES without parental deeming are considered to have "grandfathered" eligibility status. Parent-to-child deeming will be waived for a child who is grandfathered as long as the child remains continuously enrolled in the ECF CHOICES program.

c. Resources

The individual's countable resources must not exceed \$2,000. Parent-to-child deeming rules apply, with some exceptions, if the individual is a child under age 18. See the Parent-to-Child Deeming section in this policy and the Resource Deeming section in the ABD Deeming of Income and Resources policy. A resource assessment must be conducted if the individual has a community spouse. See the Resource Assessment policy.

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d. Income

i. ECF CHOICES 217-Like Group and Interim ECF CHOICES At-Risk Group

The individual's gross countable income must not exceed 300% of the SSI Federal Benefit Rate (SSI-FBR). See example budget in the Institutional Medicaid policy. Parent-to-child deeming rules apply, with some exceptions, if the individual is a child under age 18. See the Parent-to-Child Deeming section in this policy and the Ineligible Parent Income Deeming section in the ABD Deeming of Income and Resources policy.

ii. ECF CHOICES At-Risk Group

The individual's net countable income must be at or below 150% of the Federal Poverty Level (FPL). See the ABD Income Disregards and Expenses policy for specific disregards and expenses. Parent-to-child deeming rules apply, with some exceptions, if the individual is a child under age 18. See the Parent-to-Child Deeming section in this policy and the Ineligible Parent Income Deeming section in the ABD Deeming of Income and Resources policy.

iii. ECF CHOICES Working Disabled Group

There are two income tests for the ECF CHOICES Working Disabled Group.

1. For the first test, the individual's net countable income must be at or below 250% of the FPL. See the ABD Income Disregards and Expenses policy for specific disregards and expenses. Parent-to-child deeming rules apply, with some exceptions, if the individual is a child under age 18. See the Parent-to-Child Deeming section in this policy and the Ineligible Parent Income Deeming section in the ABD Deeming of Income and Resources policy.
2. For the second test, the individual's net countable income (including deemed income), after his earned income is disregarded, must be below the SSI-FBR. Parental and spousal deeming rules apply. The individual would be eligible for SSI but for his earned income.

Note: If an individual's income is over the income limit for the ECF CHOICES 217-Like, the Interim ECF CHOICES At-Risk, the ECF CHOICES At-Risk Groups, or for the first income test for the ECF CHOICES Working Disabled Group, the individual will be provided an opportunity to establish a Qualified Income Trust (QIT). See the "Qualified Income Trust (QIT) or Miller Trusts" section in the ABD Trusts policy.

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e. LTSS Payments

All other provisions related to payment of TennCare Medicaid LTSS payments apply (e.g., patient liability, transfer of assets, home equity limit, etc.). See the Post-Eligibility Treatment of Income, Transfer of Assets and Penalty Periods, and ABD Countable and Excluded Resources policies for more information.

j. Example Budget

a. ECF CHOICES At-Risk Group

Stephen Miller, a 17-year-old with I/DD, is applying for ECF CHOICES. He is determined eligible for an At-Risk LOC, and there is currently an available slot in an ECF CHOICES benefit group that Stephen can be enrolled in. He lives at home with his mother and younger sister. Stephen works part-time and receives \$400 a month in earned income. His sister does not have any income. Stephen's mother receives \$3,500 a month in earned income, of which \$715 is deemed to Stephen.

Income Budget Calculation		
Unearned Income		\$ 0.00
Irregular Unearned Income Disregard	+	\$ 0.00
In-Kind Support and Maintenance	+	N/A
Ineligible Spouse's Deemed Unearned Income	+	0.00
Ineligible Parent's Deemed Income	+	715.00
General Deduction (\$20)	-	20.00
Child Support Disregard	-	0.00
Widow/Widower Entitlement Disregard	-	N/A
DAC Entitlement Disregard	-	N/A
COLA Disregard	-	N/A
Total Net Unearned Income	=	\$ 695.00
Self-Employment Income		\$ 0.00
Earned Income	+	\$ 400.00
Irregular Earned Income Disregard	-	0.00
Student Earned Income Exclusion	-	0.00
Ineligible Spouse's Deemed Earned Income	+	0.00
Remaining General Deduction	-	0.00
Earned Income Deduction	-	65.00
Impairment Related Work Expense	-	N/A
½ Deduction	-	167.50
Blind Work Expense	-	0.00

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Total Net Earned Income	=	\$ 167.50
Total Countable Income (Total Net Unearned Income + Total Net Earned Income)	=	\$ 862.50
Qualified Income Trust	-	0.00
Net Countable Income		\$ 862.50
Income Test Limit		\$ 1610.00
Income Test Result		PASS

The above budget is current as of July 2021.

Stephen's net countable income, \$862.50, is less than 150% of the FPL. Stephen is income-eligible for the ECF CHOICES At-Risk Group.

b. ECF CHOICES Working Disabled Group

Linda Davis, a 32-year-old with I/DD, is applying for ECF CHOICES. She is determined eligible for an At-Risk LOC, and there is currently an available slot in an ECF CHOICES benefit group that Linda can be enrolled in. Linda lives in the household with her husband Jerry. Linda is working and receives \$3,400 a month in earned income. Jerry is working and receives \$2,000 a month in earned income.

i. 250% FPL Test

Income Budget Calculation		
Unearned Income		\$ 0.00
Irregular Unearned Income Disregard	+	0.00
In-Kind Support and Maintenance	+	N/A
Ineligible Spouse's Deemed Unearned Income	+	0.00
Ineligible Parent's Deemed Income	+	0.00
General Deduction (\$20)	-	0.00
Child Support Disregard	-	0.00
Widow/Widower Entitlement Disregard	-	N/A
DAC Entitlement Disregard	-	N/A
COLA Disregard	-	N/A
Total Net Unearned Income	=	\$ 0.00
Self-Employment Income		\$ 0.00
Earned Income	+	\$ 3400.00
Irregular Earned Income Disregard	-	0.00
Student Earned Income Exclusion	-	0.00
Ineligible Spouse's Deemed Earned Income	+	0.00
Remaining General Deduction	-	20.00
Earned Income Deduction	-	65.00

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Impairment Related Work Expense	-	0.00
½ Deduction	-	1657.50
Blind Work Expense	-	0.00
Total Net Earned Income	=	\$ 1657.50
Total Countable Income (Total Net Unearned Income + Total Net Earned Income)	=	\$ 1657.50
Qualified Income Trust	-	N/A
Net Countable Income		\$ 1657.50
Income Test Limit		\$ 2684.00
Income Test Result		PASS

The above budget is current as of July 2021.

Linda's net countable income, \$1657.50, is less than 250% of the FPL. Linda has passed the first income test.

ii. SSI-FBR Test

Income Budget Calculation		
Unearned Income		\$ 0.00
Irregular Unearned Income Disregard	+	0.00
In-Kind Support and Maintenance	+	N/A
Ineligible Spouse's Deemed Unearned Income	+	0.00
Ineligible Parent's Deemed Income	+	0.00
General Deduction (\$20)	-	0.00
Child Support Disregard	-	0.00
Widow/Widower Entitlement Disregard	-	N/A
DAC Entitlement Disregard	-	N/A
COLA Disregard	-	N/A
Total Net Unearned Income	=	\$ 0.00
Self-Employment Income		\$ 0.00
Earned Income	+	\$ 0.00
Irregular Earned Income Disregard	-	0.00
Student Earned Income Exclusion	-	0.00
Ineligible Spouse's Deemed Earned Income	+	2000.00
Remaining General Deduction	-	20.00
Earned Income Deduction	-	65.00
Impairment Related Work Expense	-	0.00
½ Deduction	-	957.50
Blind Work Expense	-	0.00
Total Net Earned Income	=	\$ 957.50
Total Countable Income (Total Net Unearned Income + Total Net Earned Income)	=	\$ 957.50

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Qualified Income Trust	-	N/A
Net Countable Income		\$ 957.50
Income Test Limit		\$ 1191.00
Income Test Result		PASS

The above budget is current as of July 2021.

Linda's net countable income (after disregarding her earned income), \$957.50, is less than the SSI-FBR for a couple. Linda has passed the second income test. She is income-eligible for the ECF CHOICES Working Disabled Group.

k. ECF CHOICES Effective Date

Eligibility in an ECF CHOICES demonstration group begins on the date the case is approved in the eligibility determination system based on a determination that all applicable eligibility and enrollment criteria have been met. An individual is enrolled into ECF CHOICES on the date the individual is determined eligible for and will begin receiving LTSS.

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Version History

Revision Date	Section	Section Title	Page Number(s)	Reason for Revision	Reviser
07.01.2021				Publication	
09.01.2022		Legal Authority		Policy Clarification	AJ
09.01.2022	4.	ECF CHOICES Demonstration Groups	2	Non-Substantive Change	AJ
09.01.2022	7.b-c.; 7.d.i - iii.1.	Parent-to-Child Deeming; Resources; ECF CHOICES 217-Like Group and Interim ECF CHOICES At-Risk Group; ECF CHOICES At-Risk Group; ECF CHOICES Working Disabled Group	5-6	Policy Change	AJ
08.01.2024	1.	Overview	1	Non-Substantive Change	BP